

HOUSE BILL 1384

By Harris

AN ACT to amend Tennessee Code Annotated, Title 3;
Title 4; Title 5; Title 6; Title 7; Title 8 and Title 50,
relative to pay stubs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 50, Chapter 2, Part 1, is amended by
adding the following as a new section:

(a) This section is known and may be cited as the "Pay Stub Protection Act."

(b) As used in this section:

(1) "Department" means the department of labor and workforce
development;

(2) "Employee" means a natural person who performs services for an
employer for valuable consideration;

(3) "Employer" means an individual, partnership, association,
corporation, business trust, legal representative, or organized group of persons
receiving services from an employee and, in return, giving compensation to the
employee; and

(4) "Workweek" means a fixed, regularly recurring period of one hundred
sixty-eight (168) hours that an employer expressly adopts for purposes of
complying with § 207 of the Fair Labor Standards Act of 1938 (29 U.S.C. § 207).

(c) An employer shall provide to an employee of the employer in a written or
electronic state, or another form of access to, a statement of the employee's earnings
and deductions for each pay period on the employer's paydays. The statement must
include the following information:

- (1) The employee's name;
- (2) The employee's address;
- (3) The employer's name;
- (4) The total gross wages earned by the employee during the pay period;
- (5) The total net wages paid to the employee for the pay period;
- (6) The amount and purpose of each addition to or deduction from the wages paid to the employee during the pay period;
- (7) The date the employee was paid and the pay period covered by the payment; and
- (8) For an employee who is paid on an hourly basis, the following information:
 - (A) The total number of hours the employee worked during the pay period;
 - (B) The hourly wage rate at which the employee was paid; and
 - (C) The employee's hours worked in excess of forty (40) hours in one (1) workweek.

(d)

(1) An employee who does not receive a statement as required by subsection (c) may make a written request, including electronically, to the employee's employer for the statement. The employer shall provide the employee with the statement no later than ten (10) days after receipt of a request submitted pursuant to this subsection (d).

(2) If the employee does not receive the requested statement within the ten-day period, then the employee may submit a report of the violation to the department of labor and workforce development. The department shall

investigate a complaint submitted and, if the department finds that an employer violated subsection (c), then the department shall issue a written warning to the employer.

(3) If the department receives a complaint of an employer who has received a written warning pursuant to subdivision (d)(2) violating subsection (c) after receipt of the written warning, then the department shall conduct a contested case hearing pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, on the question of whether the employer violated subsection (c) again. If the department determines that the employer violated subsection (c) again after receipt of the written warning, then the department shall assess a civil penalty against the employer in an amount not less than fifty dollars (\$50.00) nor more than five hundred dollars (\$500) per violation, depending upon the number of times an employer has violated subsection (c), the size of the employer, and other factors deemed appropriate for consideration by the department.

(e) The department shall promulgate rules to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. For purposes of rulemaking, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it, and applies to conduct occurring on or after that date.